

The Cinematograph (Certification) Rules, 1983

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[Rule THE-CINEMATOGRAPH-CERTIFICATION-RULES-1983 of 1983](#)

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[The Cinematograph \(Certification\) Rules, 1983](#)

[Published vide G.S.R. 381\(E\), dated 9.6.1983.](#)

[363.](#)

[In exercise of the powers conferred by section 8 of the Cinematograph Act, 1952 \(](#)

[37 of 1952](#)

[\), and in supersession of the Cinematograph \(Censorship\) Rules, 1958 the Central Government hereby makes the following rules, namely:--](#)

[1.](#)

[Short title and commencement. - \(1\) These rules may be called The Cinematograph \(Certification\) Rules, 1983.](#)

[\(2\)](#)

[They shall come into force on 1st day of June, 1983.](#)

2.

Definitions. - In these rules, unless the context otherwise requires,--

(i)

"Act" means the Cinematograph Act, 1952 (37 of 1952

);

(ii)

"advisory panel" means the advisory panel of the Board constituted under rule 7;

(iii)

"applicant" means a person applying for certification of a film for public exhibition under section 4;

(iv)

"Assistant Regional Officer" means an assistant regional officer appointed under rule 9 and includes the Secretary to Chairman;

(v)

"Board" means the Board of Film Certification constituted under section 3;

(vi)

"Chairman" means the Chairman of the Board;

(vii)

"Chief Executive Officer" means a Chief Executive Officer appointed under rule 9;

(viii) "Examining Officer" means [a Chief Executive Officer or] a Regional Officer or an Additional Regional Officer or an Assistant Regional Officer, or the Secretary to Chairman or such other officer who is a member of the examining committee appointed under sub-rule (1) of rule 22;

(ix)

["feature film" means fictionalised story film exceeding 2000 metres in length in 35 mm or corresponding length in other gauges or on video;]

[Substituted by G.S.R. 83(E), dated 28.2.1984 (w.e.f. 1.3.1984).]

(x)

"imported" means bringing into India from a place outside India;

(xi)

"long film" is a film with a length exceeding 2000 metres in 35 mm or corresponding length in other gauges or compact video disc;

(xii)

"member" means a member of the Board and includes the Chairman;

(xiii) "Regional Officer" means a Regional Officer appointed under rule 9 and includes a Chief Executive Officer, an Additional Regional Officer and an Assistant Regional Officer, or such other officer appointed under that rule;

(xiv)

["Secretary to the Tribunal" means the officer of Government appointed to function as the Secretary to the Appellate Tribunal under sub-section (7) of section 5-D;

(xv)

"section" means a section of the Act;

(xvi)

["short film" means a film with a length upto and including 2000 metres in length in 35 mm or corresponding length in other gauges or on video tape or compact video disc;]

[Substituted by G.S.R. 207(E), dated 10.4.1997 (w.e.f. 10.4.1997).]

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3.

Terms of office. - (1) A member of the Board shall hold office during the pleasure of the Central Government.

(2)

Subject to the provisions of sub-rule (1), the Chairman shall hold office for a period of three years and shall continue to hold office until his successor is appointed:

Provided that pending the appointment of his successor the Central Government may appoint another person to act as

Chairman for a period not exceeding one year.

(3)

Subject to the provisions of sub-rule (1), every other member shall hold office for a period not exceeding three years.

(4)

A retiring member or a member whose term of office has expired by efflux of time shall be eligible for re-appointment.

[3-A. Representation of women in the Board.

- The Central Government may take such steps as it thinks fit to appoint women members in the Board so that there is due representation for women.]

4.

Casual vacancy. - A casual vacancy caused in the Board by resignation, death or removal of a member or otherwise shall be filled by the appointment of another member who shall hold office for the full term of membership provided under sub-rule (3) of rule 3.

5.

Headquarters. - Unless otherwise directed by the Central Government, the headquarters of the Board shall be at Bombay.

6.

[Temporary absence of Chairman.

- Notwithstanding anything contained in these rules, when the Chairman is unable to discharge his functions owing to absence, illness or any other cause, the Central Government may nominate a member of the Board who will discharge the functions of the Chairman until the Chairman resumes his duties.]

7.

Constitution of advisory panels. - (1) The Central Government shall constitute an advisory panel at each of the regional offices of the Board.

(2)

An advisory panel constituted under sub-rule (1) shall consist of such number of members as the Central Government may, after consultation with the Board, determine.

(3)

The Central Government may, after consultation with the Board, appoint any person whom it thinks fit to be a member of an advisory panel:

Provided that the Central Government may dispense with such consultation in respect of such number of members not exceeding one-third of the total number of the members of the advisory panel, as that Government thinks fit:

[Provided further that there shall be due representation to women in an advisory panel.]

8.

Term of office of members of advisory panels. - (1) A member of an advisory panel shall hold office during the pleasure of the Central Government.

(2)

Subject to the provisions of sub-rule (1), every such member shall hold office for a period not exceeding two years:

Provided that any person holding office as a member immediately before the commencement of these rules shall hold such office only for the remainder of the term for which he was appointed.

(3)

A retiring member or a member whose term of office has expired by efflux of time shall be eligible for re-appointment.

(4)

A casual vacancy in an advisory panel caused by the resignation, death or removal of any member or otherwise shall be filled by fresh appointment and the person so appointed shall hold office for a period not exceeding two years.

(5)

The Central Government may remove from office any member of an advisory panel before the expiration of his term of office:

Provided that a member appointed to an advisory panel after consultation with the Board shall not be so removed except on the recommendation of or after consultation with the Board.

9.

Officers of the Board. - (1) For the purpose of enabling the Board to perform its functions under the Act, the Central

Government may appoint a Chief Executive Officer, Regional Officers, Additional Regional Officers, Assistant Regional Officers and such other officers at the headquarters and at each of the regional offices of the Board:

Provided that the Central Government may delegate to the Chairman/Chief Executive Officer subject to such conditions and limitations, if any, as may be specified by it, the power of appointment conferred on it under this sub-rule, other than the powers of appointment in relation to the posts of Regional Officer and Additional Regional Officer:

Provided further that the Chairman/Chief Executive Officer may grant leave to or suspend or remove from service any officer appointed by him under the powers delegated to him under this sub-rule.

(2)

The Regional Officers, Additional Regional Officers, Assistant Regional Officers and other officers appointed under sub-rule (1) shall perform such duties as may be assigned to them under these rules, or by the Chairman/Chief Executive Officer or by the Board.

10.

Duties of the Board. - The Board shall, in addition to other duties prescribed under these rule,--

(1)

submit an annual report to the Central Government reviewing the work done by the Board during the preceding financial year and the report shall contain a detailed analytical study of the trends in film industry;

(2)

prescribe the manner in which the registers, records and accounts of the Board shall be kept; and

(3)

review the work of Regional Officers and members of the Advisory Panels.

11.

Assessment of public reactions to films. - With a view to determining the principles to be observed in certifying films, the Board may take such steps as it thinks fit to assess public reactions to films, and for that purpose, the Board may hold symposia or seminars of film critics, film writers, community leaders and persons engaged in the film industry, or such other persons and also undertake local or national surveys to study the impact of various kinds of films on the public mind.

12.

Terms and conditions of service (other than salary and allowances) of the Chairman of the Board and allowances payable to the other members of the Board. - (1) The Chairman, if he is a paid full-time officer, shall be entitled to draw travelling and daily allowances as admissible under the Fundamental and Supplementary Rules and shall be entitled to leave and leave salary and such other benefits and shall be governed by such conditions of service as are applicable to Central Government officers engaged on contract:

Provided that in the case of an officer of an All India or Central Civil or General Central Service or State Service being appointed as Chairman, he shall be entitled to leave and leave salary and other benefits admissible to officers of such service so long as he continues to belong to that service:

Provided further that if an officer who has already been holding a post under Government on contract with the benefits of Contributory Provident Fund is appointed as Chairman, he shall be allowed to carry forward the unutilised portion of leave earned by him during previous service and he shall also continue to be eligible for the Contributory Provident Fund benefits.

(2)

Every honorary member (including the Chairman where he does not receive any salary) may,--

(a)

if he is an out-station member,-

(i)

travel by air or by train as admissible according to the orders issued by the Central Government from time to time in respect of journeys undertaken by him for the performance of his duties as such members;

(ii)

be paid a consultancy fee for attending the preview of a film or meeting of the Revising Committee or the Board at the rate of Rs. 75 for each day of such preview or meeting;

(iii)

be paid daily allowance at the rate of Rs. 50 per day for the day preceding the meeting and that following the meeting, if

the member actually stays at the place of the meeting;

(b)

if he is a local member, be paid a consultancy fee for attending the preview of a film or meeting of the Revising Committee or the Board at the rate of Rs. 50 for each day of such preview or meeting:

Provided that daily allowance will not be admissible in addition for the day or days for which consultancy fee is paid.

13.

Allowances payable to members of the advisory panel. - (1) Every member of the advisory panel shall be entitled to draw travelling and daily allowances for journeys performed by him for attending the meetings of the Board outside the headquarters or for the purpose of discharging any other duties prescribed under the Act on the scale provided under the Fundamental and Supplementary Rules applicable to First Grade officers of Government.

(2)

Every member of the advisory panel shall be entitled to receive a consultancy fee for attending a preview of film or a meeting of the Committee or Panel or for verification of cuts and affected reels at the rate of Rs. 50 per diem, provided that daily allowance in terms of sub-rule (1) above will not be admissible in addition for the day or days for which consultancy fee is paid.

(3)

[Notwithstanding anything contained in sub-rules (1) and (2), if any member of the advisory panel is a Member of Parliament, he shall not be entitled to any remuneration other than the allowances defined in clause (a) of section 2 of the Parliament (Prevention of Disqualification) Act, 1959 (

10 of 1959

);.]

14.

Meetings of the Board. - (1) The Board shall ordinarily meet once a quarter for the transaction of business but the Chairman may at any time call an extraordinary meeting, if he considers it necessary to do so.

(2)

Meetings of the Board shall be held at such places as the Chairman may at his discretion fix for the purpose.

15.

Co-opted members. - The Chairman may co-opt the Chief Executive Officer or anyone or more of the Regional Officers or any officer of the Central Government as a member or members of the Board for the purpose of attending a particular meeting of the Board and such officer or officers shall then be entitled to participate in the deliberations of the Board at that meeting but shall not be entitled to vote.

16.

Notice of meeting. - (1) At least [twenty-one clear days'] notice of all meetings of the Board shall be given to each member but an urgent meeting may be called by the Chairman at three clear days' notice.

(2)

The notice shall state the business to be transacted at the meetings and no business other than that stated shall be transacted at such meeting except with the consent of the Chairman or on his motion.

17.

Business ordinarily to be transacted at meetings. - The business of the Board shall ordinarily be transacted at a meeting duly called in accordance with the provisions of these rules:

Provided that the Chairman may, if he thinks fit, circulate any urgent matter among the members for their opinion.

18.

Quorum. - At every meeting of the Board four members if the Chairman be present, and six members if he be absent, shall form a quorum.

19.

President of the meeting. - Meetings of the Board shall be presided over by the Chairman or in his absence by a member elected by the members present from among themselves.

20.

Question to be decided by majority of votes. - Every question before the Board shall be decided by a majority of votes and in the case of equality of votes, the Chairman or the member elected to preside under rule 19, as the case may be, shall have a second or casting vote.

21.

Application for examination of films. - (1) Every application to certify a film for public exhibition shall be made in writing in [Form I or Form I-A or Form II or Form II-A, as the case may be,] set out in the Second Schedule according as the film is produced in or imported into India.

(2)

The application shall be addressed to the Board and delivered to the Regional Officer concerned as per the First Schedule:

Provided that where films are imported into India, the Chairman may direct or permit applications in respect of them to be delivered to a Regional Officer other than the Regional Officer to whom such applications would have been delivered but for this proviso:

Provided further that the Chairman may in the following circumstances direct or permit applications in respect of any films or class of films to be delivered to a Regional Officer other than the Regional Officer to whom such applications would have been delivered but for this proviso, namely:--

(i)

where the Chairman is satisfied that immediate action for examination of a film is necessary; or

(ii)

where examination of a film with the assistance of persons well acquainted with the language of the film is not possible at the place where, but for the provisions of this proviso, it would have been delivered for examination; or

(iii)

for such other reasons as may be specified by the Chairman in writing.

(3)

Every such application shall be accompanied by--

(a)

the fee prescribed under rule 36;

(b)

eight copies in the case of feature films and five copies in the case of other films, of the synopsis of the film, together with full credit titles and of the full text of the songs if any with reel number, one copy of complete shooting script as prescribed and a statement showing the reelwise length of the film:

Provided that where the film is in a language other than English or any Indian language, the applicant shall furnish eight typed or printed copies of the translation in English or Hindi of the synopsis and of the full text of the songs, if any, and one copy of the translation in English or Hindi of dialogues:-

Provided further that in the case of a film referred to in the preceding proviso, the Regional Officer may direct the applicant to furnish also eight typed or printed copies of the translation in English or Hindi of the full text of the dialogue, speeches or commentary; [*]

[The word " and" omitted by G.S.R. 413(E), dated 29.5.1984.]

(bb)

[a declaration made in writing by the producer of the film declaring that no cruelty was caused to the animals used during shooting of the films produced in India.

[Inserted by G.S.R. 646(E), dated 12.11.1997 (w.e.f. 12.11.1997).]

Explanation I.-For the purposes of this clause--

(i)

"animal" shall have the meaning assigned to it in clause (a) of section 2 of the Prevention of Cruelty to Animals Act, 1960 (

59 of 1960

);

(ii)

"cruelty" means treating the animals in any manner specified in clauses (a) to (o) of sub-section (1) of section 11 of the Prevention of Cruelty to Animals Act, 1960 (

59 of 1960

);]

(c)

if the application is made for the purpose of a fresh certificate under sub-rule (2) of rule 29, the original certificate or duplicate certificate; [and]

[Inserted by G.S.R. 413(E), dated 29.5.1984.]

(d)

[if the application is made by a person other than the producer or copyright holder of the film, an authorisation in writing on a stamped paper of appropriate value to be notified by the Chairman from the producer or copyright holder of the film.]

[Inserted by G.S.R. 413(E), dated 29.5.1984.]

(4)

If, in the case of a newsreel, documentary or other short film, the Regional Officer is satisfied that the applicant is not able to furnish the documents specified in sub-rule (3) along with the application for reasons beyond his control, the Regional Officer may direct that such documents may be furnished within such period after the examination of the film as he may specify or that the submission of such documents may be dispensed with.

(5)

No such application shall be accompanied by any documents other than those mentioned in sub-rule (3).

[* * *]

[Omitted by Notification No. G.S.R. 357(E), dated 11.4.2017 (w.e.f. 9.6.1983).]

(6) Notwithstanding anything contained in the foregoing sub-rules, in the case of a film which is imported,--

(a) the applicant shall furnish the original or a certified copy of the import license together with the customs clearance permit and with the customs clearance papers;

(b) where there is a doubt or dispute about the validity or genuineness of the documents referred to in clause (a), the Board may before the application is considered refer such documents for ascertaining their validity or genuineness to the authority which issued the same;[*]

[The word " and" omitted by G.S.R. 814(E), dated 13.12.1984 (w.e.f. 13.12.1984).]

(c) the Board shall not take any steps for certification of a film in a case where any matter regarding the validity of the documents referred to in clause (b) is pending before any Court or any public authority until the disposal of such matter by the[Court or authority; and]

[Substituted by G.S.R. 814(E), dated 13.12.1984 (w.e.f. 13.12.1984).]

(d) [such film shall not be examined by the Board for certification for public exhibition in India unless the Board is satisfied that the film is validly imported in accordance with the import policy of the Government.]

[Inserted by G.S.R. 814(E), dated 13.12.1984 (w.e.f. 13.12.1984).]

Explanation .-For the purpose of certification for public exhibition, every revised version or shorter version of a film shall be deemed to be a fresh film.

22.

Examining committee. - (1) On receipt of an application under rule 21, the Regional Officer shall appoint an Examining Committee to examine the film. The examination shall be made at the cost of the applicant on such date, at such place and at such time as the Regional Officer may determine.

(2)

The Examining Committee shall consist of,--

(a)

in the case of a short film, a member of the advisory panel and an examining officer either of whom shall be a woman; and

(b)

in the case of a long film, four members of the advisory panel and an examining officer of whom two persons shall be women:

Provided that if the examining officer is unavoidably absent at the examination of a film, the Examining Committee shall consist of two members of the advisory panel in a case falling under clause (a) and five members of the advisory panel in a case falling under clause (b) :

[Provided further that in the Examining Committee, in a case falling under clause (a) one member shall be a woman and in a case falling under clause (b) two members shall be women.]

(3)

The film to be examined by the Examining Committee shall be in its final form with the background music and all sound effects duly recorded on the film itself.

(4)

All previews of films for the purposes of examination for certification and the reports and records relating thereto shall be treated as confidential.

(5)

The names of the members of the Examining Committee examining the film shall not be disclosed to any official or non-official not concerned with the preview of the particular film or to any other person including the applicant or his representative.

[(5-A) Nothing in sub-rules (4) and (5) shall affect the disclosure of names of persons in the certificate granted by the Board.]

[Inserted by G.S.R. 705(E), dated 30.10.1995 (w.e.f. 1.1.1996).]

(6)

The applicant or his representative shall not be allowed to be present inside the preview theatre.

(7)

Notwithstanding anything contained in sub-rules (4), (5) and (6), the Chairman may, by special or general order permit any member of the staff to be present at the preview to render such assistance as may be required.

(8)

The Examining Committee shall examine the film having regard to the principles for guidance in certifying films specified in section 5-B(1) and the guidelines issued by Government under section 5-B(2).

(9)

Immediately after the examination of the film each member of the Examining Committee attending the examination shall, before leaving the preview theatre record his opinion in writing in Form VIII set out in the Second Schedule spelling out in clear terms the reasons therefor and state whether he or she considers,--

(a)

that the film is suitable for unrestricted public exhibition, i.e., fit for 'U' certificate; or

(b)

that the film is suitable for unrestricted public exhibition but with an endorsement of caution that the question as to whether any child below the age of 12 years may be allowed to see the film should be considered by the parents or guardian of such child, i.e., fit for 'UA' certificate; or

(c)

that the film is suitable for public exhibition restricted to adults, i.e., fit for 'A' certificate; or

(d)

that the film is suitable for public exhibition restricted to members of any profession or any class of persons having regard to the nature, content and theme of the film, i.e., fit for 'S' certificate; or

(e)

that the film is suitable for 'U' or 'UA' or 'A' or 'S' certificate, as the case may be, if a specified portion or portions be excised or modified therefrom; or

(f)

that the film is not suitable for unrestricted or restricted public exhibition, i.e., that the film be refused a certificate, and if the Chairman is away from the regional centre where the film is examined, the form aforesaid shall be prepared in duplicate.

(10)

The examining officer shall distribute copies of the synopsis with credit titles and songs among the members of the Committee and furnish them the form and such other documents as may be specified by the Board for making their recommendation.

(11)

After the screening of the film, the examining officer shall see that--

(a)

the recommendation of every member of the Committee is recorded in unambiguous terms and each excision or modification is properly specified in clear terms with reason or reasons therefor;

(b)

the same is duly signed by the members of the Committee; and

(c)

where the report of any member of the Committee is incomplete, that fact is brought to the notice of the member concerned before he leaves the preview theatre.

(12)

The examining officer shall within three working days send the recommendations of all the members of the Examining Committee to the Chairman and the Chairman is away from the centre where the film is examined, by registered post.

(13)

It shall be the personal responsibility of the examining officer to examine whether each and every guideline issued by Government has been followed and to bring any lapse or deviation to the notice of the Chairman.

(14)

The quorum for the Examining Committee for a long film shall be four [of whom at least two persons shall be women.]

[Added by G.S.R. 603(E), dated 3.8.1994 (w.e.f. 3.8.1984).]

23.

Certification. - On receipt of the record referred to in sub-rule (12) of rule 22, the Chairman shall, unless the provisions of sub-rule (1) of rule 24 are attracted, direct the Regional Officer concerned to take further action on behalf of the Board in conformity with the recommendation of the Examining Committee either unanimous or by majority:

Provided that in case of a short film when the Committee is divided in its opinion, the Chairman shall either examine the film himself and take or direct the Regional Officer concerned to take further action on behalf of the Board to give effect to his decision.

24.

Revising Committee. - (1) On receipt of the record referred to in rule 22, the Chairman may, of his own motion or on the request of the applicant, refer it to a Revising Committee constituted for the purpose.

(2)

The Revising Committee shall, subject to sub-rule (5), consist of a Chairman and not more than nine members, being members of the Board or members of any of the advisory panels, to be specified by the Chairman:

[Provided that subject to the provisions of sub-rule (11), the Chairman shall give due representation to women in the Committee by nominating such number of women members as he thinks fit.]

(3)

The Chairman or in his absence a member of the Board nominated by the Chairman shall preside at every meeting of the Revising Committee.

(4)

The Regional Officer of the Centre where the application was received under rule 21, may be invited to attend any meeting of a Revising Committee and participate in proceedings thereof but he shall have no right to vote thereat.

(5)

No member of the advisory panel who has been a member of the Examining Committee for any film shall be a member of the Revising Committee in respect of the same film.

(6)

The provisions of sub-rules (4) to (8) of rule 22 shall apply mutatis mutandis to the examination of films by the Revising Committee or the Board.

(7)

The Revising Committee shall examine the film at the applicant's expense, on such date, at such place and at such time, as the Chairman may determine.

(8)

For the purpose of examination by a Revising Committee,--

(a)

the applicant shall present the same clear runnable print of the film which was shown to the Examining Committee and he shall make no change whatsoever in it and he shall furnish the necessary declaration in writing in that behalf;

(b)

the applicant shall be required to furnish fifteen typed or printed copies of the complete synopsis of the film together with

the full credit titles and of the full text of songs, if any, with reel number, and where he has made a representation under sub-section (2) of section 4, fifteen copies thereof shall also be furnished:

Provided that where the film is in a language, other than English or any Indian language, the applicant shall furnish fifteen typed or printed copies of the translation in English or in Hindi of the synopsis together with full credit titles and of the full text of the songs, if any:

Provided further that in the case of a film referred to in the preceding proviso, the Chairman may direct the applicant to furnish also fifteen typed or printed copies of the translation in English or Hindi of the full text of the dialogue, speeches or commentary:

Provided also that where the Chairman is satisfied that the applicant is not able to furnish the documents specified in this sub-rule for reasons beyond his control the Chairman may direct that the submission of such documents be dispensed with.

(9)

Immediately after examination of the film, each member of the Revising Committee shall before leaving the preview theatre record his recommendations in writing in Form VIII set out in the Second Schedule spelling out in clear terms the reasons therefor and stating whether he or she considers--

(a)

that the film is suitable for unrestricted public exhibition, i.e., fit for 'U' certificate; or

(b)

that the film is suitable for unrestricted public exhibition but with an endorsement of caution that the question as to whether any child below the age of twelve years may be allowed to see the film should be considered by the parents or guardian of such child, i.e., fit for 'UA' certificate; or

(c)

that the film is suitable for public exhibition restricted to adults, i.e., fit for 'A' certificate; or

(d)

that the film is suitable for public exhibition restricted to members of any profession or any class of persons having regard to the nature, content and theme of the film, i.e., fit for 'S' certificate; or

(e)

that the film is suitable for grant of 'U' or 'UA' or 'A' or 'S' certificate, as the case may be, if a specified portion or portions be excised or modified therefrom; or

(f)

that the film is not suitable for unrestricted or restricted public exhibition, i.e., that the film be refused a certificate, and if the Chairman is away from the regional centre where the film is examined the form aforesaid shall be prepared in duplicate.

(10)

The Presiding Officer of the Revising Committee shall, within three days, send the recommendations of all the members of the Revising Committee to the Chairman and where the Chairman is away from the centre where the film is examined, by registered post.

(11)

[The quorum of the Revising Committee shall be five members of whom at least two persons shall be women:

Provided that the number of women members shall not be less than one-half of the total members of a Committee constituted under sub-rule (2).]

[Substituted by G.S.R. 816(E), dated 16.11.1994 (w.e.f. 16.11.1994).]

(12)

The decision of a Revising Committee shall be that of the majority of the members attending the examination of the film and, in the event of an equality of votes, the presiding officer shall have a second or casting vote:

Provided that where the Chairman disagrees with the decision of the majority of the Committee, the Board shall itself examine the film or cause the film to be examined again by another Revising Committee and that the decision of the Board or the second Revising Committee, as the case may be, shall be final.

25.

On receipt of the orders of the Board under section 4 or section 5-A, the Regional Officer shall communicate the same to the applicant by registered post or in such other manner as in the circumstances of the case he deems fit and take such

other steps in accordance with the said orders as he may deem necessary.

26.

Issue of certificate subject to removal of portions of film. - (1) Where the applicant is informed by a Regional Officer that a film will not be granted 'U' or 'UA' or 'A' or 'S' certificate, as the case may be, unless a specified portion or portions thereof be removed from the film, the Regional Officer may issue such a certificate, if he is satisfied on a declaration made in writing (in Form IX set out in Second Schedule) by the applicant that the portion or portions objected to have been excised from the negative of the film and from all copies thereof, whether in the possession of the applicant or the laboratory where the film was processed, the distributor, the exhibitor or any other person and surrendered to him.

Explanation .-For the purpose of being satisfied that the portion or portions objected to have been excised from the negative of the film and from all copies thereof,--

(a)

the Regional Officer or the Chairman may at the expense of the applicant examine the relevant portions of the negative of the film or copies thereof or cause it or them to be examined by one or more members of the advisory panel at such time and place as he may determine;

(b)

the Regional Officer may require the applicant to produce a certificate from the owner or the manager of the laboratory where the film was processed, in such form as may be specified by the Board in this behalf in regard to the number of positive and negative copies of the film made in the laboratory.

(2)

A certificate issued under sub-rule (1) shall be endorsed with a specification of the portion or portions required to be removed and a statement of the exact length of each part or parts removed and in the case of reduction of scene or sequences, it shall mention the length of the portion reduced and the length of the portion retained and shall bear a clearly visible triangle drawn at the left hand bottom corner of the certificate.

(3)

Where any film has been granted a certificate under this rule subject to the condition that a specified portion or portions thereof be removed from the film, any person who imports or otherwise acquires a copy of the film after the date of certificate aforesaid, shall surrender to the Board such portion or portions in any such copy.

27.

The portion or portions of the film and of all copies surrendered to the Regional Officer as provided in rule 26 shall be preserved for a period of six months in the Board's office and unless required by the Board shall thereafter be handed over to an authorised officer of the National Film Archive of India, Poona for study and research.

28.

Deposit of a copy of certified film. - (1) In the case of a feature film after [the Chairman or] the Regional Officer has affixed his signature to the certificate granted under the foregoing rules and prior to the delivery or despatch of the certificate to the applicant, a copy in any gauge of the film as certified by the Board shall be deposited by the applicant with the Board at his own expense for the purpose of record.

Explanation .-A video copy of the film shall be treated as a copy of the film for the purpose of this sub-rule.

(2)

In the copy deposited under sub-rule (1) the negative side number (key numbers) shall be clearly printed.

(3)

The copy deposited under sub-rule (1) except where it is a video copy may, at the discretion of the Regional Officer concerned, be returned to the applicant on the expiry of one year from the date of first release of the film.

(4)

Before return of the copy of the film under sub-rule (3), the applicant shall deliver to the Board the full shooting script of the film together with dialogues:

Provided that where the script as aforesaid is not delivered within one month after the expiry of one year from the first release of the film, the film shall be sent to the Curator of the National Film Archive of India, Poona, and the applicant shall thereafter collect the same at his own expense, only after obtaining a release order from the Board after delivering the script aforesaid.

(5)

No application for the return of the copy of film deposited with the Board in exchange, for the full shooting script under

the proviso to sub-rule (4) shall be entertained after two years from the date of the first release of the film:

Provided that the Chairman may, on being satisfied that there is sufficient cause for not making the application within the said period of two years, entertain the application before the expiry of a further period of one year.

(6)

In the case of films other than feature films, that is, shorts, documentaries, newsreels, advertisement films and such other films after the Regional Officer has affixed his signature to the certificate granted under the foregoing rules and prior to the delivery or despatch of the certificate to the applicant, the applicant shall deposit with the Board a copy of the film or in lieu of such deposit, the shooting script or a verbatim commentary or a tape record of the commentary:

Provided that in the case of such films where the Chairman is of the opinion that the applicant for reasons beyond his control is unable to deposit a copy of the film or script or verbatim commentary or tape record of that commentary prior to the delivery or despatch of the certificate, he may direct that the certificate be delivered to the applicant on his giving an undertaking in writing that he shall deposit the said copy of the film or script or verbatim commentary or tape record of the commentary within such time not exceeding sixty days as may be specified by the Chairman.

(7)

All such copies of films, scripts or commentaries or tape records of commentaries deposited with the Board shall be accompanied by a declaration in Form X set out in the Second Schedule.

29.

Validity of certificate. - (1) A certificate granted by the Board under sub-section (1) of section 5-A in respect of a film shall be valid for a period of ten years from the date on which the certificate is granted.

(2)

Where in relation to the certificate of a film the period has expired, a fresh certificate in [Form IV, IV-A, V, V-A, VI, VI-A, VII or VII-A] set out in the Second Schedule, as the case may be, may be issued on an application made in this behalf and the same shall be dealt with as if it were an original application:

Provided that a Regional Officer may, with the prior approval of the Chairman, dispense with examination of the film, if the application is for the issue of certificate in the same form in which it was issued earlier.

(3)

An applicant for a fresh certificate shall be required to deposit a copy of shooting script or verbatim commentary or tape recorded commentary of the film only in cases where at the time of making application for the initial certificate the same was not deposited.

30.

Compliance with section 6-A. - (1) The manner of notification to the distributor or exhibitor for the purpose of section 6-A, shall be by delivery of a duplicate copy of the certificate (containing both Parts I and II thereof) with each copy of the certified film to be distributed or exhibited:

[Provided that in the case of video film, a copy of the certificate showing the serial number, the category and other details should be pasted on every video cassette as well as on its case.]

(2)

The provisions of sub-rule (1) shall apply in relation to an amendment of a certificate in respect of a film as it applied in relation to the certificate itself.

(3)

The duplicate copy of the certificate of a film referred to in sub-rule (1) shall accompany the film and be prominently exhibited in the theatre on all days on which the film is exhibited therein.

31.

Uncertification of a film under section 6.-Where in exercise of the powers conferred by section 6 of the Act, the Central Government by notification directs that a certified film shall be deemed to be an uncertified film in the whole of India, the applicant and any other person or persons to whom the rights in the film have passed, shall stop the exhibition of the film forthwith and surrender the certificate and all copies of the duplicate certificate granted in respect of the film to the Board within one month from the date of the notification:

[Provided that the Chairman may, at the written request of the applicant or any other person concerned, extend the said period and the total period so extended shall not exceed six months.]

32.

Re-examination of certified films. - (1) Where in respect of a film, which has been certified for public exhibition, any

complaint is received by the Board, the same shall be forwarded to the Central Government.

(2)

The Central Government may, if it considers it necessary so to do, direct the Chairman to re-examine any film (in respect of which a complaint has been received by it directly or through the Board) in such manner and with such assistance as may be specified in the direction.

(3)

The Chairman may, for the purpose of re-examination aforesaid, require by written notice the person who made the application for certification of the film or the person to whom the rights of ownership or distribution in the film have passed, to arrange at his expense to deliver a print of the certified film to any specified Regional Officer within such time as may be specified in the notice for the purpose of re-examination.

(4)

The place, date and time of such re-examination shall be determined by the Chairman.

(5)

The Chairman shall forward his opinion together with the print of the film in relation to which a certificate was issued earlier to the Central Government who may after such enquiry as it deems fit, pass such orders thereon in exercise of the revisional powers under section 6.

(6)

The provisions of this rule shall apply only in cases where the revisional powers are exercisable by the Central Government under section 6.

33.

Alteration of film after issue of certificate. - (1) When a film is altered by excision, addition, colouring or otherwise after it has been certified under these rules, it shall not be exhibited unless the portion or portions excised, added, coloured or otherwise altered, have been reported to the Board in Form III in the Second Schedule and the Board has endorsed the particulars of the alteration or alterations on the certificate.

Explanation I.-Reasonable wear and tear in the normal course of handling or projecting a film shall not be deemed to be an alteration of the film within the meaning of this sub-rule.

Explanation II.-Any addition, deletion, alteration or replacement of background music in a film or (unless the Chairman by general or special order otherwise directs), a mere change in gauge shall not be deemed to be an alteration of the film within the meaning of this sub-rule.

(2)

For the purpose of exercising its powers under sub-rule (1), the Regional Officer shall appoint an Examining Committee to examine at the expense of the applicant, the reel or reels of the film in which the portion or portions are altered in such manner and with such assistance as he may deem fit and where the Examining Committee considered it necessary so to do, it shall re-examine the entire film:

Provided that where a film is altered by excision or by the change of a coloured film into black and white version only it shall not ordinarily be necessary to appoint an Examining Committee unless the Regional Officer in any case otherwise directs.

(3)

The Examining Committee appointed under sub-rule (2) shall consist of [one member] of the Advisory Panel and an examining officer:

Provided that where the examining officer is unavoidably absent at the examination of the film or any reel thereof, the Examining Committee shall consist of two members of the Advisory Panel.

(4)

Pending examination of the altered film under this rule, the applicant shall not exhibit the film incorporating the proposed alteration.

(5)

Where the film or any portion thereof as the case may be, is re-examined under this rule, the Chairman shall unless for reasons to be recorded in writing, he declines permission for the alteration, make suitable endorsement in the certificate granted in relation to the film.

34.

Amendment of certificate granted by the Board after notification under section 6.-When a notification is published under

the powers conferred by section 6 of the Act declaring that a film in respect of which a 'U' certificate or a 'UA' certificate or an 'S' certificate has been granted shall be deemed to be a film in respect of which an 'A' certificate has been granted, the person to whom the certificate has been granted or the person to whom the rights in the film have passed as the case may be, shall surrender within one month from the date of issue of the order the original certificate and all the duplicate copies thereof to the Board for the issue of a fresh certificate of the new category.

35.

Certificates. - (1) A certificate authorising the public exhibition of a film shall be in one of the [Forms IV, IV-A, V, V-A, VI, VI-A, VII or VII-A set out in the Second Schedule according as the film is fit for 'U' or 'UA' or 'A' or 'S' or 'U' or 'V/A' or 'V/UA' or 'V/S'] certificate, as the case may be.

(2)

The certificate shall be signed for and on behalf of the Board by the Chairman or by a Regional Officer for the Chairman.

(3)

[The prescribed mark of the Board shall be a film copy of the certificate, that is, a trailer certificate, which shall be affixed to the film and always exhibited with it. The trailer certificate shall be for such duration as one can read it on the screen:

Provided that Part I of the certificate shall be shown for a minimum duration of 10 seconds:

Provided further that if there are no excisions or modifications ordered by the Board, Part II of the certificate need not be shown.]

[Substituted by G.S.R. 705(E), dated 30.10.1995 (w.e.f. 1.1.1996).]

36.

[Fees.

[Substituted by Notification No. G.S.R. 77(E), dated 27.1.2017 (w.e.f. 9.6.1983).]

(1)

A fee shall be charged for the examination of every film at the rates laid down in the following Table and the same shall be paid either in cash or remitted by postal order or bank draft to the regional centre of the Board where the film is to be examined.

Table of Fees

(i)

Celluloid Films

Length in meters(up to and inclusive of)

Examination Fees(Other than Predominantly

Educational films)(in rupees)

Examination Fees(Predominantly Educational

films)(in rupees)

Screening Fees(in rupees)

(1)

(2)

(3)

(4)

300

2,000

400

200

600

3,950

800

400

900

5,950

1,200

600

1,200
7,950
1,600
800
1,500
9,950
2,000
1,000
1,800
11,900
2,400
1,200
2,100
13,900
2,800
1,400
2,400
15,900
3,200
1,600
2,700
17,850
3,550
1,800
3,000
19,850
3,950
2,000
3,300
21,850
4,350
2,000
3,600
23,850
4,750
2,000
3,900
25,800
5,150
2,000
4,200
27,750
5,550
2,000
4,500
29,800
5,950
2,000
4,800
31,750
6,350

2,000
5,100
33,750
6,750
2,000
5,400
35,750
7,150
2,000
5,700
37,750
7,550
2,000
6,000
39,650
7,950
2,000
(ii)
Other than Celluloid Films
Duration in minutes(up to and inclusive
of)
Examination Fees(Other than Predominantly
Educational films)(in rupees)
Examination Fees(Predominantly Educational
films)(in rupees)
Screening Fees(in rupees)
(1)
(2)
(3)
(4)
10
1,900
550
150
20
3,650
1,100
300
30
5,950
1,200
400
40
7,350
1,450
550
50
9,150
1,850
700
60

10,900
2,200
850
70
12,700
2,550
950
80
14,700
2,950
1,050
90
17,650
3,300
1,250
100
18,250
3,650
1,400
110
20,050
4,000
1,550
120
21,850
4,350
1,650
130
23,800
4,750
1,800
140
23,800
5,100
1,950
150
27,200
5,450
2,100
160
29,150
5,850
2,200
170
30,950
6,200
2,350
180
32,750
6,550
2,500

190
34,750
6,950
2,650
200
36,300
7,250
2,800
(2)

Fee for the examination of a film for certifying alterations under rule 33 shall be calculated only with reference to the reel or reels (or cassette or cassettes), in which the portion or portions excised, added, colored or otherwise altered occur and for the purposes the rate specified in the table aforesaid for original certification shall be applicable:

Provided that where the alteration is by excision, the fee chargeable shall be at the rate of one hundred and fifty rupees per each endorsement.

(3)
A fee of one hundred and fifty rupees shall be paid for a duplicate copy of the certificate.

(4)
In the event of an application for certification being withdrawn before the film is examined, the Board may on an application made to it in that behalf, refund to the applicant the amount of fee paid towards the examination of the film after deducting twenty-five per cent. of the amount so paid.

(5)
In the event of an applicant failing to present a runnable print before the Examination Committee or the Revising Committee on the day and time and at the place fixed for such examination, an additional fee of twenty-five per cent. of the fee payable for examination of the film under this Table shall be paid before another place, date and time for the examination of the film is fixed.

(6)
If, by mistake, miscalculation or such other reason, the applicant pays towards fee for the examination of any film any amount in excess of the amount of fee payable under these rules, the Board may, on an application made in that behalf, within a period of one year from the date of certification of the film, refund to the applicant the amount so paid in excess.

(7)
Any person who applies to the Board for information regarding the certification or any other particular in respect of a film shall along with the application, pay a search fee of thirty-five rupees per each title of the film.]

36. [Fees.

[Substituted by G.S.R. 457(E), dated 2.7.2007 (w.e.f. 2.7.2007).]

- (1) A fee shall be charged for the examination of every film at the rates laid down in the following Table and the same shall be paid either in cash or remitted by postal order or bank draft to the regional center of the Board where the film is to be examined.]

TABLE OF FEES

PARTI-EXAMINATION FEE

(i) Celluloid Films

{|

Length in meters (up to and inclusive of)

Predominantly Educational Films (Rs.)

Other than Predominantly Educational Films (Rs.)

1
2
3
300
200
1000
600

400
2000
900
600
3000
1200
800
4000
1500
1000
5000
1800
1200
6000
2100
1400
7000
2400
1600
8000
2700
1800
9000
3000
2000
10000
3300
2200
11000
3600
2400
12000
3900
2600
13000
4200
2800
14000
4500
3000
15000
4800
3200
16000
5100
3400
17000
5400
3600
18000
5700

3800

19000

6000

4000

20000

(ii)

Other than Celluloid Films

Duration in minutes (up to and inclusive of)

Predominantly Educational Films (Rs.)

Other than predominantly Educational Films (Rs.)

1

2

3

10

280

950

20

560

1850

30

600

3000

40

740

3700

50

920

4600

60

110

5500

70

1280

6400

80

1480

7400

90

1660

8300

100

1840

8200

110

2020

10100

120

2200

11000

130

2400

12000

140

2560

12000

150

2740

13700

160

2940

14700

170

3120

15600

180

3300

16500

190

3500

17500

200

3660

18300

Part II ? .-IN ADDITION TO THE EXAMINATION FEE MENTIONED IN
Part I ? ABOVE, SCREENING FEE SHALL BE CHARGED AS UNDER:-

(i)

Celluloid Films

Length in meters

(up to and inclusive of)

Screening Fee (Rs.)

1

2

300

100

600

300

900

400

1200

500

1500

600

1800

700

2100

800

2400

900

2700

1000

(ii)

Other than Celluloid Films

Duration in minutes
(up to and inclusive of)
Screening Fee (Rs.)

1
2
10
70
20
140
30
210
40
280
50
350
60
420
70
490
80
560
90
630
100
700
110
770
120
840
130
910
140
980
150
1050
160
1120
170
1190
180
1260
190
1330
200
1400
(2)

Fee for examination for certifying alterations under rule 33.-Fee for the examination of a film for certifying alterations under rule 33 shall be calculated only with reference to the reel or reels (or cassette or cassettes), in which the portion or portions excised, added, coloured or otherwise altered occur and for the purposes the rate specified in the table aforesaid for original certification shall be applicable:

Provided that where the alteration is by excision, the fee chargeable shall be at the rate of rupees seventy per each

endorsement.

(3)

A fee of rupees seventy shall be paid for a duplicate copy of the certificate.

(4)

In the event of an application for certification being withdrawn before the film is examined, the Board may on an application made to it in that behalf, refund to the applicant the amount of fee paid towards the examination of the film after deducting twenty-five per cent of the amount so paid.

(5)

In the event of an applicant failing to present a runnable print before the Examination Committee or the Revising Committee on the day and time and at the place fixed for such examination, an additional fee of twenty-five per cent of the fee payable for examination of the film under this Table shall be paid before another place, date and time for the examination of the film is fixed.

(6)

If, by mistake, miscalculation or such other reason, the applicant pays towards fee for the examination of any film any amount in excess of the amount of fee payable under these rules, the Board may, on an application made in that behalf, within a period of one year from the date of certification of the film, refund to the applicant the amount so paid in excess.

(7)

Any person who applies to the Board for information regarding the certification or any other particular in respect of a film shall along with the application, pay a search fee of rupees thirty-five per each title of the film.

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37.

Power of entry. - The Chairman or any member of the Board or an advisory panel or a Regional Officer or any other officer or member of the staff of the Board or any officer of the Central Government authorised in writing by the Chairman or members or any officer or member of the staff of the Appellate Tribunal or any officer of the Central Government authorised in writing by the Secretary to the Government of India in the Ministry of Information and Broadcasting in this behalf, may enter any place licensed under the law in force relating to cinemas, in the discharge of his duties under the Act or these rules and thereupon the owner or the manager of such place shall provide him with a seat of the highest rate or the next lower class to view the film without charging the admission fee and entertainment tax.

38.

Advertisement of films. - Any person advertising a film granted 'UA', 'A' or 'S' certificate or the exhibition of such film by means of insertions in newspapers, hoardings, posters, handbills or trailers shall, after the date of its certification, indicate in such insertions in newspapers, hoardings, posters, handbills or trailers that the film has been certified for such public exhibition. [such advertisement shall indicate only the certified title of a film.]

39.

Maintenance of register. - (1) The Board shall [maintain] a register in which these shall be entered,--

(a)

the name of every film examined under the Act;

(b)

the name of the person applying for certificate;

(c)

the name of the person or company producing or releasing the film;

(d)

the name of the country in which the film was originally produced;

(e)

the name of the place where the film was examined;

(f)

the date of the examination;

(g)

the names of the persons who examined the film;

(h)

the result of the examination and of any further proceedings thereon;

(i)
the number and date of the certificate issued, if any, together with a copy of any endorsement made thereon.

(2)
For the purpose of enabling the Board to maintain such a register, the Regional Officers concerned shall each maintain similar registers in respect of applications for certification made to them and send to the Board a duplicate copy of every entry made in it, as soon as may be, after it has been made.

(3)
A copy of the entries in the register maintained by the Board made during any month shall be sent to all the Regional Officers during the next following month.

40.
Certain films to continue to remain uncertified films. - If a film has been declared by a notification issued before the 15th January, 1951 by any State Government to be an uncertified film in any part or parts of the State concerned and if the said notification has not ceased to be in force by virtue of the proviso to sub-rule (2) of rule 35 of the Cinematograph (Censorship) Rules, 1951, the film shall not be publicly exhibited unless it is certified for public exhibition in accordance with the provisions of these rules:

Provided that before certifying any such film for public exhibition the Board shall obtain the prior approval of the Central Government.

41.
Time-limit in relation to certification of films. - (1) After an application under rule 21 for the certification of a film, complete in all respects (including the proof of payment of fees) is received, the Board shall scrutinise the application within seven days from the receipt thereof.

(2)
On receiving an intimation from the applicant that a clear runnable print of the film is available for examination, the Board shall, within 15 days therefrom refer the film for examination to an Examining Committee.

(3)
The films may be referred to the Examining Committee in the order in which the applications are received:
Provided that the Regional Officer may on receipt of a written request from any applicant, if satisfied that there are grounds for an early examination, alter the order of examination of the film after recording the reasons in writing.

(4)
(a)
In cases where the Examining Committee, after examination of the film, considered that a scrutiny of the shooting script is necessary or the authenticity of the incidents depicted in a film of historical, mythological, biographical or legendary nature is to be verified, a provisional report to that effect shall be submitted by the Regional Officer to the Chairman within a maximum of three working days after such examination.

(b)
A written communication shall be sent to the applicant within a maximum of three working days following the receipt of the Chairman's orders on the provisional report referred to in clause (a) and the applicant shall submit the script or the authentic sources on which the subject of his film is based within ten days from the date of receipt of such communication.

(c)
In cases where the members of the Examining Committee after the examination of the film submit to the Chairman a provisional report indicating that expert opinion on subjects depicted in the film such as subjects relating to defence or foreign relations or any particular religion or law or medicine or any other subject, should be sought before the final report is submitted, the Chairman may after taking into consideration the circumstances of the case specify a time limit for obtaining the expert opinion and for the submission of the final report of the Examining Committee thereafter.

(d)
In other cases, the script submitted by the applicant or the authentic sources furnished by him shall be scrutinised by the examining officer and the final report of the Examining Committee shall be forwarded by the examining officer of the Chairman within ten days from the date of receipt of the script or the authentic sources, as the case may be.

(5)

(a)

On receipt of the orders of the Board on the recommendations of the Examining Committee, in cases where sub-section (2) of section 4 is applicable, the communication to the applicant shall be issued within three days.

(b)
The applicant shall submit his reply within fourteen days of the receipt of the communication.

(6)
In cases where the film is not referred to a Revising Committee, certificate shall be issued or decision communicated within seven days.

(7)
(a)
In cases where a film is to be referred to a Revising Committee, a Revising Committee shall be constituted within twenty days from the receipt of the necessary documents from the applicant.

(b)
The provisions of sub-rules (3) to (6) shall apply *mutatis mutandis* to the examination of films by the Revising Committee.

(c)
When a film is referred to another Revising Committee or to the Board in terms of proviso to sub-rule (12) of rule 24, the time limit will be further extended on the lines of (a) and (b) of this sub-rule.

(8)
The applicant shall surrender the cuts, if any, and the affected reels together with full particulars thereof, within a period of fourteen days from the date of receipt of the final orders of the Board under section 4:

Provided that where the applicant applies to the Board that he intends to appeal against the orders of the Board, the Board may extend the period specified above for surrender of the cuts by such period as it thinks fit, but in any case not beyond fourteen days from the date of disposal of the appeal or from the date of expiration of the period for filing the appeal in cases where no appeal is filed.

(9)
The cuts and the affected reels shall be examined by the Regional Officer within ten days of the submission of the same.

(10)
If the cuts are found to be adequate on the scrutiny of the relevant reels and all particulars necessary for the presentation of the certificate are fully furnished, certificate shall be prepared and issued within five days of the deposit of a copy of the film or script, as the case may be, as required under these rules.

(11)
If, however, the cuts are found to be inadequate on a scrutiny of the relevant reels, the Regional Officer shall record the same on the file and send within two days a further communication to the applicant for compliance with the orders of the Board.

(12)
The applicant shall submit further cut to the Regional Officer within three days from the date of receipt of the communication.

(13)
The Regional Officer shall again verify further cuts and the reels within five days of the receipt of the same and if the cuts are found to be adequate a certificate shall be issued.

(14)
The Chairman may, for reasons to be recorded in writing, relax the time-limits prescribed by this rule for the performance of any act if he is satisfied that it is necessary so to do to avoid any undue hardship.

Explanation .-In calculating the periods specified in this rule working days alone shall be taken into account and Sundays and other holidays shall be excluded.

42.
Preservation of records of certification of films. - (1) Records of certification of feature/long film shall be preserved by the Board for a minimum period of twelve years.

(2)
Records of certification of all short films shall be preserved by the Board for a minimum period of two years:
Provided that in the case of short films if thereby cuts made by the Board or alterations made therein under rule 33 or if

complaints have been received against the film, records of certification of the film shall be preserved for a minimum period of twelve years.

43.

Terms and conditions of service of the Chairman and members of the Appellate Tribunal. - (1) The Chairman and members of the Appellate Tribunal shall hold office during the pleasure of the Central Government.

(2)

Subject to the provisions of sub-rule (1), the Chairman of the Appellate Tribunal shall hold office for a period of three years and shall continue to hold office until his successor is appointed.

(3)

Subject to the provisions of sub-rule (1), every other member of the Appellate Tribunal shall hold office for a period not exceeding three years.

(4)

A retiring Chairman or a member of the Appellate Tribunal whose term of office has expired by efflux of time shall be eligible for re-appointment.

(5)

Notwithstanding anything contained in the foregoing sub-rules, when the Chairman of the Appellate Tribunal is unable to discharge his functions owing to absence, illness or any other cause, the Central Government may appoint another person to discharge the functions of the Chairman until the Chairman resumes his duties.

(6)

The Central Government may, after consultation with the Chairman of the Appellate Tribunal, appoint any person whom it thinks fit to be a member of the Appellate Tribunal:

Provided that the Central Government may, for reasons to be recorded in writing, dispense with such consultation.

(7)

A casual vacancy in the membership of the Appellate Tribunal caused by the resignation, death or removal of any member or otherwise shall be filled by fresh appointment and the person so appointed shall hold office for a period not exceeding three years.

(8)

The Central Government may remove from office any member of the Appellate Tribunal before the expiration of his term of office:

Provided that a member appointed to the Appellate Tribunal after consultation with the Chairman of the Appellate Tribunal shall not be so removed except on the recommendation of or after consultation with the Chairman of the Appellate Tribunal.

(9)

For the purpose of enabling the Appellate Tribunal to perform its functions under the Act, the Central Government may appoint a Secretary to the Appellate Tribunal and such other officers for the Appellate Tribunal as may be considered necessary:

Provided that the Central Government may delegate to the Chairman of the Appellate Tribunal subject to such conditions and limitations, if any, as may be specified by it, the power of appointment conferred on it under this sub-rule, other than the powers of appointment in relation to the post of Secretary to the Appellate Tribunal:

Provided further that the Chairman of the Appellate Tribunal may grant leave to or suspend or remove from service any officer appointed by him under the powers delegated to him under this sub-rule.

(10)

The Secretary to the Tribunal and other officers appointed under sub-rule (9) shall perform such duties as may be assigned to them by these rules or by the Chairman of the Appellate Tribunal.

(11)

Notwithstanding anything contained in the foregoing sub-rules, the Chairman of the Appellate Tribunal may, for the purpose of enabling the Tribunal to discharge its functions under the Act, make appointments to posts other than Group A posts and may assign to the persons holding such posts, duties as he may deem fit.

(12)

The Chairman of the Appellate Tribunal, if he is a paid full time officer, shall receive such pay and allowances as are admissible to a serving Judge of a High Court. He shall be entitled to all facilities and concessions not less favourable

than those admissible to a serving Judge of a High Court:

Provided that in the case of a retired Judge of a High Court re-employed as Chairman of the Appellate Tribunal, the pay and other terms and conditions of service shall be the same as are applicable to re-employed Judges of a High Courts under the orders of the Central Government.

(13)

Every honorary member (including the Chairman where he does not receive any salary) may,--

(a)

if he is an out-station member,

(i)

travel by air or by train as admissible according to the orders issued by the Central Government from time to time in respect of journeys undertaken by him for the performance of his duties as such member;

(ii)

be paid a consultancy fee for attending the preview of a film or meeting of the Appellate Tribunal at the rate of Rs. 100 for each day of such preview or meeting; and

(iii)

be paid daily allowance at the rate of Rs. 50 per day for each day preceding the meeting and that following the meeting, if the member actually stays at the place of the meeting;

(b)

if he is a local member, be paid a consultancy fee for attending the preview of a film or meeting of the Appellate Tribunal at the rate of Rs. 75 per day for each day of such preview or meeting:

Provided that daily allowance will not be admissible in addition for the day or days for which the consultancy fee is paid.

44.

Fees for appeal to the Appellate Tribunal. - (1) Subject to sub-rule (2) below, fees at the rates laid down in the following Table shall be payable along with every appeal petition preferred under sub-section (2) of section 5-C and the same shall be paid either in cash or remitted by postal order or bank draft to the Secretary to the Tribunal:

Table of Fees

(i)

Long film : Rs. 750 irrespective of length and gauge of film;

(ii)

Short film : Rs. 100 irrespective of length and gauge of film.

(2)

The Chairman of the Appellate Tribunal may at his discretion and for reasons to be recorded in writing, waive the payment of fee in any particular case.

(3)

In the event of an appeal being withdrawn before the film is previewed, the Chairman of the Appellate Tribunal may, on application made to it in that behalf, refund to the appellant the amount of fee paid towards appeal after deducting 25 per cent of the amount so paid.

(4)

In the event of an appellant failing to present a runnable print before the Appellate Tribunal on the day and time and at the place fixed for preview, an additional fee of 25 per cent of the fee payable for consideration of appeal under the Table in sub-rule (1) shall be paid before another date and time for the preview of the film is fixed.

(5)

If, by mistake, miscalculation or such other reason, the applicant pays towards fee for the consideration of appeal any amount in excess of the amount of fee payable under these rules, the Chairman of the Appellate Tribunal may, on an application made in that behalf, within a period of one year from the date the appeal has been decided, refund to the applicant the amount so paid in excess.

First Schedule

(See rule 21)

Application for Certification of Films Imported into or Produced in the States/ Union Territories Mentioned in column 3 shall be presented at the Regional Office in column 2:

Sl. No.

Regional Office situated at

Films imported into or produced in

(1)

(2)

(3)

1.

Bangalore

State of Karnataka.

2.

Bombay

States of Gujarat, Madhya Pradesh and Maharashtra and the Union Territories of Dadra and Nagar Haveli and Goa, Daman and Diu.

3.

Calcutta

[States of Bihar, West Bengal and the Union Territories of Andaman and Nicobar Islands].

4.

Cuttack

State of Orissa.

5.

Delhi

States of Haryana, Himachal Pradesh, Jammu and Kashmir, Punjab, Rajasthan and Uttar Pradesh and the Union territories of Chandigarh and Delhi.

6.

Guwahati

States of Arunachal Pradesh, Assam, Manipur, Meghalaya, Mizoram, Nagaland, Sikkim and Tripura.

7.

Hyderabad

State of Andhra Pradesh.

8.

Madras

States of Tamil Nadu and the Union Territory of Pondicherry.

9.

Trivandrum

State of Kerala and the Union Territory of Lakshadweep.

Note. - [(1)] The dubbed version of a film, in whatever Indian language, will be submitted for certification only to the Regional Office where the original version of the film was certified in the first instance.

(2)

[] The following two norms will define the "place of production" of films :-

(i)

The location of the producer's association/council/chamber, etc., with whom the film-title was registered before starting production of film concerned. In the case of registration of the title with more than one association/council/chamber, etc., only the earlier registration to be considered; and

(ii)

The location of the Head Office/Regional Office/production office of the film [producing]

[Substituted by G.S.R. 134 (E), dated 18-3-1996 (w.e.f. 18-3-1996)]

company.

Second Schedule

Form I

Form of Application for Certification for Public Exhibition of a Film Produced in India

[See sub-rule (1) of rule 21]

No. and date of application (to be entered by Board's office)

To
The Central Board of Film Certification through the Regional Officer at.....

Application for certification for public exhibition of a film produced in India at.....

(1)

(a)

Name of the film

(b)

Language of the film

(c)

Length of the film in ft.metre

(d)

Number of reels

(e)

Gauge of the film

(f)

Type of the film, i.e. whether it is 2-D, 3-D, cinemascope, vistavision, etc.

(g)

Whether the film is silent or a talkie

(h)

Colour of the film

(i)

Name and address of the producer

(j)

Name of the director

(2)

State whether the film is a newsreel/documentary/scientific/educational/feature/advertisement film.

(2-A) Specify the certificate requested 'U', 'UA', 'A' or 'S'

(3)

State separately the number of negative and positive prints of the film.

(a)

Produced (negative..... Positive)

(b)

In the applicant's possession (negativePositive)

(c)

Name and address of the processing laboratory.

(4)

(a)

Whether the present film is a dubbed version or a re-make of any other film? If so, state the particulars along with full details of certificates issued to that film.

(b)

Whether any pre-censorship advice was obtained and if so, the details thereof.

(c)

Whether permission for any shooting abroad was obtained and, if so, the details thereof.

(d)

Whether the film contains any dialogue/commentary in any language other than the language of the film and, if so, specify the language and the reels in which they occur.

(5)

Has any previous application been made to certify this film as suitable for public exhibition in India? If so,

(a)

Where and to whom was it made

(b)

What was the result of the application ?

(i)

A 'U'/'UA'/'An 'A'/'S' certificate No..... dated.....was granted subject to the following cuts.....

[Score out the word or words which are not applicable.]

(ii)

Certificate was refused.

[Score out the word or words which are not applicable.]

(6)

Has the exhibition of this film been at any time suspended or the film declared uncertified by the Central or any State Government? State particulars:

(7)

Does the film contain any dialogue, Song, poem, speech or commentary in any language other than English, or an Indian language?

If so, specify that reel or reels in which the dialogue, song, poem, speech or commentary occurs and the language or languages used.

(8)

Amount of fee accompanying the application on account of the fee prescribed in rule 36.

(i)

Receipt No..... dated

(ii)

Bank draft No..... dated on..... Bank.

(iii)

Postal order No..... dated..... on post office.

[(8-A) Whether any animal has been used in shooting of the film? If so, whether declaration specified in clause (bb) of sub-rule (3) of rule 21 has been filed ?]

[Inserted by G.S.R. 646 (E), dated 12-11-1997 (w.e.f. 12-11-1997).]

(9)

Name, address, and telephone number, if any of the applicant Telephone No.:

.....
.....
.....

(10)

I declare that the print of the film is ready for examination by the Board and the statements recorded above are true in every particular.

Date

.....

Signature of applicant

[Form I-A

[Inserted by G.S.R. 83 (E), dated 28-2-1984 (w.e.f. 1-3-1984).]

Form of Application for Certification for Public Exhibition of A [Film on Video Tape or Compact Video Disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997.]

Produced in India

[See sub-rule (1) of rule 21]

No. and date of application (to be entered by Board's office)

To

The Central Board of Film Certification through the Regional Officer at.....

Application for certification for public exhibition of a video film produced in India at.....

(1)

(a)

Name of the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

(b)

Language of the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

(c)

Running time

(d)

Number of cassettes

(e)

Any other particulars of the video conversion

(f)

Type of the film, i.e., whether it is 2-D, 3-D, cinemascope, vistavision, etc.

(g)

Whether the film is silent or a talkie

(h)

Colour of the film

(i)

Name and address of the producer

(j)

Name of the director

(2)

State whether the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

newsreel/documentary/scientific/educational/feature/advertisement video film.

(2-A) Specify the certificate requested: 'U','UA','A' or 'S'.

(3)

State separately the number of negative and positive prints of the [film on video tape or compact video disc]

[Substituted by G.S.R. 207(E), dated 10-4-1997 (w.e.f. 10-4-1997).]

.

(a)

Produced (negative..... positive)

(b)

In the applicant's possession (negativepositive)

(c)

Name and address of the laboratory/company where copies were made.

(4)

(a)

Whether the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

for which the application has been made is a replica/exact copy of a cinematograph film on celluloid in respect of which a certificate has already been granted by the Central Board of Film Certification? Also state particulars of the film certified.

(b)

Whether the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

is a modified version of a certified cinematograph film on celluloid containing additions, deletions/or other alterations (details of modifications may be provided).

(c)

Whether the application being made is in respect of an original [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

and not a copy of an already certified cinematograph film on celluloid.

(d)

Whether the present [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1-1997).]

is a dubbed version or remake of any other [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

? If so, state the particulars along with full details of certificates issued to that [film or video tape or compact video disc].

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

(e)

Whether any pre-censorship advice was obtained and if so, the details thereof.

(f)

Whether permission for any shooting abroad was obtained and, if so, the details thereof.

(g)

Whether the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

contains any dialogue/commentary in any language other than the language of the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

and, if so, specify the language and the cassette in which they occur.

(5)

Has any previous application been made to certify this [film on video tape or compact video disc]

[Substituted by G.S.R. 207(E), dated 10-4-1997 (w.e.f. 10-4-1997).]

as suitable for public exhibition in India ? If so,-

(a)

Where and to whom was it made

(b)

What was the result of the application

(i)

A 'U'/UA'/An 'A'/S' certificate No..... dated..... was granted subject to the following cuts

[Score out the word or words which are not applicable.]

]

(ii)

Certificate was refused.

[Score out the word or words which are not applicable.]

]

(6)

Has the exhibition of this [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

/film been at anytime suspended or the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

/film declared uncertified by the Central or any State Government? State particulars:

(7)

Does the [film on video tape or compact video disc]

[Substituted by G.S.R. 207(E), dated 10-4-1997 (w.e.f. 10-4-1997).]

contain any dialogue, songs, poem, speech or commentary in any language other than English or an Indian language ?

If so, specify that cassette or cassettes in which the dialogue, song, poem, speech or commentary occurs and the language used.

(8)

Amount of fee accompanying the application on account of the fee prescribed in rule 36.

(i)

Receipt No.....dated

(ii)

Bank draft No.....dated..... on.....Bank.

(iii)

Postal order No.....datedon.....Post Office.

[(8-A) Whether any animal has been used in shooting of the film? If so, whether declaration specified in clause (bb) of sub-rule (3) of rule 21 has been filed ?]

[Inserted by G.S.R. 646(E), dated 12-11-1997 (w.e.f. 12-11-1997)]

(9)

Name, address and telephone number, if any, of the applicant. Telephone No.:

(10)

I declare that the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

is ready for examination by the Board and the statements recorded above are true in every particular. I also declare that I own the rights of the [film on video tape or compact video disc]

[Inserted by G.S.R. 646 (E), dated 12-11-1997 (w.e.f. 12-11-1997).]

in question. I further declare that I have the right to use in the video film the additional material in the feature film in the form of trailers, advertisement shorts, documentary films, etc.

.....

Signature of applicant

Date.....

Form II

Form of Application for Certification for Public Exhibition of a Film imported into India

(See sub-rule (1) of rule 21)

No. and date of application (to be entered by Board's office)

To

The Central Board of Film Certification through the Regional Officer at Bombay/Calcutta/Madras.

Application for certification for public exhibition of a film first imported into India at.....

1. (a) Name of the film

(b)

Language of the film

(c)

Length of the film in ft.....metres. Length of the film as shown in the CCP and/or import licence.

Have any cuts been made voluntarily by the applicant and if so give details.

(d)

Number of reels

(e)

Gauge of the film

(f)

Type of the film, i.e., whether it is 2-D, 3-D, cinemascope, vistavision, etc.

(g)

Whether the film is silent or a talkie

(h)

Colour of the film

(i)

Name of the producer

(j)

Name of the director

(k)

Country in which produced

2. State whether the film is a newsreel/documentary/scientific/educational/feature/advertisement film.

[Score out the word or words which are not applicable.]

]

3. State separately, the number of negative and positive prints of the film:

(a)

Imported by the applicant (negative positive)

(b)

In the applicants possession (negativepositive.....)

4. In what other language/languages, if any, has this been produced or dubbed ?

Where the title is not the same in each language state the title of each version in which it has been produced or dubbed.

5. Has any previous application been made to certify this film (under its present or any other title) in,-

(a)

India:

(b)

United States of America:

(c)

United Kingdom:

(f)

Any other country:

If so,

(i)

Where and to whom was it made?

(ii)

What was the result of the application, i.e.

(i)

A 'U'/'UA'/'A'/'S' certificate No. dated was granted subject to the following cuts.....

[Score out the word or words which are not applicable.]

(ii)

Certificate was refused.

[Inserted by G.S.R. 646 (E), dated 12-11-1997 (w.e.f. 12-11-1997).]

In the case of film made in the United States of America, state the rating of his film according to (a) the national group and (b) the legion of decency.

(a)

.....(b).....

6. Has exhibition of this film been at any time suspended or the film declared uncertified by the Central or any State Government? State particulars:

7. Does the film contain any dialogue, songs, poem, speech or commentary in any language other than English, or any Indian language?

If so, specify that reel or reels in which the dialogue, song, poem, speech or commentary occurs and the language or languages used.

8. Amount of fees accompanying the application on account of the fee prescribed in rule 36.

(i)

Receipt No. dated

(ii)

Bank draft No..... datedon.....bank

(iii)

Postal order no..... datedon.....post office.

9. Name, address and telephone number, if any, of the applicant.

.....
.....
.....
.....
.....
.....

10. (a) Name, address and telephone, if any, of the importer of the film

(b)

Number and date of the import licence

(c)

Date of clearance through the customs

11. Has the film been produced by or in collaboration with South African or Rhodesian nationals wholly or in part in South Africa, South West Africa or Rhodesia or is the film owned wholly, or in part, by South African or Rhodesian nationals? If so, give details.

[11-A. Whether any animal has been used in shooting of the film? If so, whether declaration specified in clause (bb) of sub-rule (3) of rule 21 has been filed ?]

[Inserted by G.S.R. 646 (E), dated 12-11-1997 (w.e.f. 12-11-1997).]

12. I declare that the print of the film is ready for examination by the Board and the statements above recorded are true in every particular.

.....

Signature of applicant

Date

[Form II-A]

[Inserted by G.S.R. 83 (E), dated 28-2-1984 (w.e.f. 1-3-1984).]

Form of Application for Certification for Public Exhibition of A [Film on Video Tape or Compact Video Disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

imported into India

(See sub-rule (1) of rule 21)

No. and date of application (to be entered by Board's office)

To

The Central Board of Film Certification through the Regional Officer at

Application for certification for public exhibition of a [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

first imported into India at

1. (a) Name of the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

(b)

Language of the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

(c)

Running time of the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

..... metre.

Running time of the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

as shown in the CCP and/or import licence. Have any cuts been made voluntarily by the applicant and if so give details.

(d)

Number of cassettes.

(e)

Any other particulars of the video conversion.

(f)

Type of the film, i.e., whether it is 2-D, 3-D, cinemascope, vistavision, etc.

(g)

Whether the film is silent or a talkie

(h)

Colour of the film.

(i)

Name of the producer.

(j)

Name of the director.

(k)

Country in which produced.

2. State whether the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

is a newsreel/documentary/scientific/educational/feature/advertisement video film.

3. State separately, the number of negative and positive prints of the [film on video tape or compact video disc]:

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

(a)

Imported by the applicant (negativepositive.....)

(b)

In the applicant's possession (negativepositive)

4. (a) Whether the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

for which the application has been made is a replica/exact copy of a cinematograph film on celluloid in respect of which a certificate has already been granted by the Central Board of Film Certification? Also state particulars of the film certified.

(b)

Whether the [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997)]

is a modified version of a certified cinema to graph film on celluloid, containing additions, deletions/other alterations (details of modifications may be provided).

(c)

Whether the application being made is in respect of an original [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

and not a copy of an already certified cinematograph film on celluloid.

(d)

In what other language/languages, if any, has this been produced or dubbed ?

Where the title is not the same in each language state the title of each version in which it has been produced or dubbed.

5. Has any previous application been made to certify this [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

/film (under its present or any other title) in

(a)

India:

(b)

United States of America:

(c)

United Kingdom:

(d)

Any other country:

If so,

(i)

Where and to whom was it made?

(ii)

What was the result of the application, i.e.

(i)

A 'U'/'UA'/An 'A'/'S' certificate No. dated was granted subject to the following cuts.....

(ii)

Certificate was refused.

In the case of film made in the United States of America, state the rating of this film according to (a) the national groups

and (b) the legion of decency.

(a)

.....(b).....

6. Has exhibition of this [film on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

been at any time suspended or the film declared uncertified by the Central or any State Government? State particulars:

7. Does the [film on video tape or compact video disc]

[Substituted by G.S.R. 207(E), dated 10-4-1997 (w.e.f. 10-4-1997).]

contain any dialogue, song, poem, speech or commentary in any language other than English, or any Indian language ?

If so, specify the cassette or cassettes in which the dialogue, song, poem, speech or commentary occurs and the language or languages used.

8. Amount of fees accompanying the application on account of the fee prescribed in Rule 36.

(i)

Receipt No..... dated

(ii)

Bank draft No..... datedon.....bank

(iii)

Postal order No.....datedon.....post office.

9. Name, address and telephone number, if any, of the applicant.

.....

.....

.....

10. (a) Name, address and telephone number, if any, of the importer of the [film/films on video tape or compact video disc]

[Substituted by G.S.R. 207 (E), dated 10-4-1997 (w.e.f. 10-4-1997).]

.....

(b)

Number and date of the import licence

(c)

Date of clearance through the Customs

11. Has the [films/films on video tape or compact video disc]

[Substituted by G.S.R. 207(E), dated 10-4-1997 (w.e.f. 10-4-1997).]

been produced by or in collaboration with South African or Rhodesian nationals wholly or in part in South Africa, South West Africa or Rhodesia or is the film owned wholly, or in part, by South African or Rhodesian nationals? If so, give details.

[11-A. Whether any animal has been used in shooting of the film? If so, whether declaration specified in clause (bb) of sub-rule (3) of rule 21 has been filed ?]

[Inserted by G.S.R. 646 (E), dated 12-11-1997 (w.e.f. 12-11-1997).]

12. I declare that the video film is ready for examination by the Board and that the statements above recorded are true in every particular. I also declare that I own the video rights of the film in question. If further declare that I have the right to use in the video film the additional material in the feature film in the form of trailers, advertisement shorts, documentary films, etc.

.....

Signature of applicant

Date.....

Form III

(See rule 33)

(To be submitted in duplicate)

Report under rule 33 of the Cinematograph (Certification) Rules, 1983, Regarding an Alteration or Alterations in a Certified Film

1. Name of the applicant:

2. Name of the film:

3. Certificate No.....dated.....

4. Particulars of alterations:

Reel No.....Scene No.....Description of the scene/dialogue/song length.

(Specify the exact alteration or alterations, length and the number of the reel or reels in which the alteration or alterations occurs or occur).

[In the case of [film on video tape or compact video disc]

[Inserted by G.S.R. 83(E), dated 28-2-1984 (w.e.f. 1-3-1984).]

instead of length and number of reels, duration in minutes and number of cassettes may be given.]

To

The Chairman, Central Board of Film Certification through the Regional Officer at Bombay/Calcutta/Madras.*

[Score out the word or words which are not applicable.]

I declare that the above particulars are true in every respect and are a full description of the alteration or alterations made in the film after its certification.

Date.....

Address.....

.....

Signature of applicant

[FORM - IV]

[Forms IV, IV-A, V, V-A, VI, VI-A, VII and VII-A substituted by G.S.R. 705 (E), dated 30-10-1995 (w.e.f. 1-1-1996).]

[See rule 35 (1)]

Government of India

Central Board of Film Certification this Certificate is Valid for Theatrical release only

Part I

[See rule 35(1)]

Government Of India

Central Board of Film Certification this Certificate is Valid for Theatrical release only

Part I

Certificate No. Dated Category "U" Film Gauge MM Length
..... MTS Reels

After examination of the film by the members of the Examining Committee/ Revising Committee/Film Certification Appellate Tribunal mentioned below and on the recommendations of the said Examining Committee/ Revising Committee/ Film Certification Appellate Tribunal, the Board hereby certifies that the film is fit for unrestricted public exhibition subject to excisions and modifications listed in Part II on the reverse:-

1.

2.

3.

4.

Unrestricted Public Exhibition

Further certified that the excisions and modifications imposed by the Board have actually been carried out.

Name of the applicant

Name of the producer

Chairman

Part II

Particulars of excisions and modifications:

Form IV-A

[See rule 35 (1)]

Government of India

Central Board of Film Certification

This Certificate is Valid for [File On Video Tape or Compact Video Disc]

[Substituted by G.S.R. 207(E), dated 10-4-1997 (w.e.f. 10-4-1997).]

Only

Part I

Certificate No. Dated Category "V/U" Film Gauge MM Length MTS Reels

After examination of the film by the members of the Examining Committee/ Revising Committee/ Film Certification Appellate Tribunal mentioned below and on the recommendations of the said Examining Committee/ Revising Committee/ Film Certification Appellate Tribunal, the Board hereby certifies that the film is fit for unrestricted public exhibition subject to excisions and modifications listed in Part II on the reverse:-

- 1.
- 2.
- 3.
- 4.

Universal Video

Further certified that the excisions and modifications imposed by the Board have actually been carried out.

Name of the applicant

Name of the producer

Chairman

Part II

Particulars of excisions and modifications:

Form V

[See rule 35 (1)]

Government of India

Central Board of Film Certification

This Certificate is Valid for Theatrical Release Only

Part I

Certificate No. Dated Category "A" Film Gauge MM Length MTS Reels

After examination of the film by the members of the Examining Committee/ Revising Committee/ Film Certification Appellate Tribunal mentioned below and on the recommendations of the said Examining Committee/ Revising Committee/ Film Certification Appellate Tribunal, the Board hereby certifies that the film is fit for public exhibition, restricted to adults only, subject to the excisions and modifications listed in Part II on the reverse: -

- 1.
- 2.
- 3.
- 4.

Adults Only

Further certified that the excisions and modifications imposed by the Board have actually been carried out.

Name of the applicant

Name of the producer

Chairman

Part II

Particulars of excisions and modifications:

Form V-A

Government of India

Central Board of Film Certification

This Certificate is Valid for [Film on Video Tape or Compact Video Disc]

[Substituted by G.S.R. 207(E), dated 10-4-1997 (w.e.f. 10-4-1997).]

Only

Part I

Certificate No. Dated Category "V/A" Film Gauge MM Length MTS Reels

After examination of the film by the members of the Examining Committee/ Revising Committee/ Film Certification Appellate Tribunal mentioned below and on the recommendations of the said Examining Committee/ Revising Committee/ Film Certification Appellate Tribunal, the Board hereby certifies that the film is fit for public exhibition, restricted to adults only, subject to the excisions and modifications listed in Part II on the reverse: -

- 1.
- 2.
- 3.
- 4.

Adults Only Video

Further certified that the excisions and modifications imposed by the Board have actually been carried out.

Name of the applicant

Name of the producer

Chairman

Part II

Particulars of excisions and modifications:

Form VI

[See rule 35 (1)]

Government of India

Central Board Of Film Certification

This Certificate Is Valid For Theatrical Release Only

Part I

Certificate No. Dated Category "UA" Film Gauge MM Length MTS Reels

After examination of the film by the members of the Examining Committee/Revising Committee/Film Certification Appellate Tribunal mentioned below and on the recommendations of the said Examining Committee/Revising Committee/Film Certification Appellate Tribunal, the Board hereby certifies that the film is fit for public exhibition with an endorsement of caution that the question as to whether any child below the age of 12 years may be allowed to see the film should be considered by the parents or guardian of such child, and also subject to excisions and modifications listed in Part II on the reverse:-

- 1.
- 2.
- 3.
- 4.

Parental Guidance

Further certified that the excisions and modifications imposed by the Board have actually been carried out.

Name of the applicant

Name of the producer

Chairman

Part II

Particulars of excisions and modifications:

Form VI-A

[See rule 35 (1)]

Government of India

Central Board of Film Certification

This Certificate is Valid For [Film on Video Tape or Compact Video Disc]

[Substituted By G.S.R. 207 (E), Dated 10-4-1997 (W.E.F. 10-4-1997).]

Part I

Certificate No. Dated Category "UA" Film Gauge MM Length MTS Reels

After examination of the film by the members of the Examining Committee/Revising Committee/Film Certification Appellate Tribunal mentioned below and on the recommendations of the said Examining Committee/Revising

Committee/Film Certification Appellate Tribunal, the Board hereby certifies that the film is fit for public exhibition with an endorsement of caution that the question as to whether any child below the age of 12 years may be allowed to see the film should be considered by the parents or guardian of such child, and also subject to excisions and modifications listed in Part II on the reverse :-

- 1.
- 2.
- 3.
- 4.

Further certified that the excisions and modifications imposed by the Board have actually been carried out.

Name of the applicant

Name of the producer

Chairman

Part II

Particulars of excisions and modifications:

Form VII

[See rule 35 (1)]

Government Of India

Central Board Of Film Certification

This Certificate Is Valid For Theatrical Release Only

Part I

Certificate No. Dated Category "S" Film Gauge MM Length MTS Reels

After examination of the film by the members of the Examining Committee/Revising Committee/Film Certification Appellate Tribunal mentioned below and on the recommendations of the said Examining Committee/Revising Committee/Film Certification Appellate Tribunal, the Board hereby certifies that the film is fit for public exhibition restricted to members of any profession or any class of persons, subject to excisions and modifications listed in Part II on the reverse: -

- 1.
- 2.
- 3.
- 4.

Specialised Audience

Further certified that the excisions and modifications imposed by the Board have actually been carried out.

Name of the applicant

Name of the producer

Chairman

Part II

Particulars of excisions and modifications:

Form VII-A

[See rule 35 (1)]

Government of India

Central Board of Film Certification

This Certificate is Valid for [Film on Video Tape or Compact Video Disc]

[Substituted G.S.R. 207(E), Dated 10-4-1997 (W.E.F. 10-4-1997).]

only

Part I

Certificate No. Dated Category "V/S" Film Gauge MM Length MTS Reels

After examination of the film by the members of the examining Committee/Revising Committee/Film Certification Appellate Tribunal mentioned below and on the recommendations of the said Examining Committee/Revising Committee/Film Certification Appellate Tribunal, the Board hereby certifies that the film is fit for public exhibition,

restricted to members of any profession or any class of persons, subject to excisions and modifications listed in Part II on the reverse: -

- 1.
- 2.
- 3.
- 4.

SPECIALISED AUDIENCE VIDEO

Further certified that the excisions and modifications imposed by the Board have actually been carried out.

Name of the applicant

Name of the producer

Chairman

Part II

Particulars of excisions and modifications:]

[Form - VIII]

[Substituted by G.S.R. 173(E), dated 25-3-1997 (w.e.f. 1-5-1997).]

[See rules 22(9) and 24(9)]

Central Board of Film Certification

Report of Member of Examining/ Revising Committee

N.B. - Please study the guidelines issued by government once again before you preview of the film.

Title of the film and language.....Colour/ Black and White Length of the film.....(meters)/ Running time.....(minutes) Reels.....Casette.....Gauge.....

Date of examination.....Name of the member.....

I. I certify that I have carefully examined the above film with reference to the guidelines.

I recommend refusal to certificate to the film. OR

I recommend the grant of following certificate to the film:

'U'/'UA'/'A'/'S'

with excisions or/and modifications

without excisions or/and modifications

[Delete whichever is not applicable]

II. In the case of grant of 'S'

certificate, please specify the class or group of persons which should constitute the specialised audiences: -

III. Reasons for refusal of certificate or grant of 'UA'/'A'/'S' certificate

Note. -

'U'-Unrestricted public exhibition.

'UA'-Unrestricted public exhibition with an endorsement that it is necessary to caution that the question as to whether any child below the age of twelve years may be allowed to see the film should be considered by the parents or guardian of such child.

'A'-Public exhibition restricted to adults.

'S'-Public exhibition restricted to members of any profession or any class of persons.

IV. Details of excisions/modifications (Please see notes below)

Sl. No.

Reel No.

Clear and specific description of excisions or modifications

Reasons with specific reference to guidelines

V. Thematic classification (only in the case of feature films)

VI. Any other remarks (including justification for permitting certain visuals and/or words prima facie appear to be objectionable)

VII. I certify that there would be no infraction of the guidelines if the film is granted a certificate as recommended above.

I also certify that the film has been judged in its entirety from the point of view of its overall impact that the film has been examined in the light of the period depicted in the film and contemporary standards of the country and the people to which the film relates; and that the film does not deprave the morality of the people.

I certify that while recommending the film for unrestricted public exhibition I have satisfied myself that the film is suitable for family viewing, including children.

.....

Signature

Notes. 1. While recommending excisions the beginning and end of the excision should be clearly described and the length of the excision may be given as a percentage of the total scene or in metres/feet.

2. If a scene or sequence is to be reduced to a flash, only 1/2 or 1 metre will be kept in the film.

3. Also if certain portions are to be completely deleted while refusing a scene or sequence these should be specified.

Form IX

(See rule 26)

I/We,....., the applicant(s) in respect of the film do hereby declare that the portion or portions objected to by the Board to Film Certification in the filmas endorsed on the certificate have been excised from the film and the original negative (picture and sound), inter negative, inter-positive and all positive prints thereof are hereby surrendered to the Central Board of Film Certification.

I/We further declare that the above declaration is correct in all respects.

.....

Signature of applicant

Name:

Address:

Place.....

Date.....

Notes. - (1) If so required by the Regional Officer, the applicant shall produce a certificate from the owner or manager of the laboratory, where the film was processed in such form as may be specified by the Board in this behalf, in regard to the number of positive and negative copies of the film made in that laboratory.

(2)

All the cuts should be jointed in the order of reel numbers indicated in the Board's direction with white pieces in between two different cuts to distinguish them. Length of each cut should be indicated in metres separately. In case of a scene required to be reduced as per directive of the Board, the producer shall indicate the length reduced and total length retained separately.

Form X

[See rule 28(7)]

Copy/ Script/ Commentary/ Tape Record Of Commentary Of Film

This is to certify that the copy of film/script of the Film/commentary/tape record of commentary noted above submitted to the Central Board of Film Certification under rule 28 of the Cinematograph (Certification) Rules, 1983, is an exact copy of the film or its script or commentary, as the case may be, as certified by the Board with complete dialogue, song, sound effects and picturisation. The correct reel wise length of the film as actually measured and certified is given below

:-

Reel No.

Length in metres

1.

2.

3.

Total :

N.B. - This includes the length of the 'Interval' and 'End' pieces.

.....

Signature of the applicant.

Related AI tags, queries and research notes

Translation